

THE CORPORATION OF THE TOWN OF HANOVER

BY-LAW NO. 3373-26

BEING a By-Law to regulate and permit the operation of off-road vehicles on designated highways under the jurisdiction of the Town of Hanover

WHEREAS the *Municipal Act*, 2001, S.O. 2001, c. 25, as amended, provides that powers of a municipality shall be interpreted broadly so as to enable a municipality to govern its affairs as it considers appropriate and to respond to issues.

AND WHEREAS the *Municipal Act*, 2001, S.O. 2001, c. 25, as amended, Section 11(3), provides that a municipality may pass by-laws with respect to municipal owned highways, including parking and traffic on such highways.

AND WHEREAS the *Highway Traffic Act*, R.S.O. 1990, c. H.8, as amended, provides that the council of a municipality may pass by-laws permitting the operation of off-road vehicles or classes of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or on any part or parts of such highway, and during specified times.

AND WHEREAS the Council of the Town of Hanover deems it in the public interest to permit and regulate the operation of off-road vehicles upon its highways or parts of its highways.

NOW THEREFORE the Council of the Town of Hanover enacts as follows:

1. Short Title

1.1 This by-law shall be known as "*The Off-Road Vehicle By-law*"

2. Definitions

"Act" shall mean the *Highway Traffic Act*, R.S.O. 1990, c. H.8, Ontario Regulation 316/03, Operations of Off-Road Vehicles on Highways.

"Boulevard" shall mean that portion of every road allowance which is not used as a sidewalk.

"County" means the Corporation of the County of Grey and a reference to the County is a reference to the geographical area of the County of Grey.

"Highway" shall mean a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct, or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof.

"Obstruction" refers to conduct, by word(s) or deed(s), of the operator of an Off-Road Vehicle or ORV that impedes a Police Officer or Municipal Law Enforcement Officer from carrying out their lawful duties and responsibilities under the provisions of this by-law.

Further clarification for **"Obstruction"** refers to **"Impede"**; to interpose impediments to the hindrance or frustration of some act or service.

"Off-road Vehicle" or **"ORV"** shall mean a vehicle propelled or driven otherwise than by muscular power or wind and designed to travel:

- A. On not more than three wheels, or
- B. On more than three wheels and being of a prescribed class of vehicle which shall be limited to the following:

- a) All-terrain vehicle or ATV means an off-road vehicle that, has four wheels, the tires of which are all in contact with the ground,
 - i) has steering handlebars,
 - ii) has a seat that is designed to be straddled by the driver, and
 - iii) is designed to carry,
 - (1) a driver only and no passengers, or
 - (2) A driver and only one passenger, if the vehicle,
 - (a) has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver, and
 - (b) Is equipped with footrests for the passenger that are separate from the footrests for the driver.
- b) Extreme terrain vehicle means an off-road vehicle that:
 - i) has six or eight wheels, the tires of which are all in contact with the ground;
 - ii) has no tracks that are in contact with the ground;
 - iii) has seats that are not designed to be straddled; and
 - iv) has a minimum cargo capacity of 159 kilograms.
- c) Multi-Purpose Off-Highway Utility Vehicle means an off-road vehicle that:
 - i) has four or more wheels, the tires of which are all in contact with the ground;
 - ii) has a steering wheel for steering control;
 - iii) has seats that are not designed to be straddled; and
 - iv) has a minimum cargo capacity of 159 kilograms.
- C. Off-road motorcycle means an off-road vehicle, designed primarily for recreational use, that:
 - i) has steering handlebars;
 - ii) has two wheels, the tires of which are all in contact;
 - iii) with the ground;
 - iv) has a minimum wheel rim diameter of 250 millimeters;
 - v) has a minimum wheelbase of 1,016 millimeters;
 - vi) has a seat that is designed to be straddled by the driver;
 - vii) is designed to carry a driver only and no passengers; and
 - viii) does not have a sidecar.
- b) Recreational off-highway vehicle means an off-road vehicle that:
 - i) has four or more wheels, the tires of which are all;
 - ii) in contact with the ground;
 - iii) has a steering wheel for steering control;
 - iv) has seats that are not designed to be straddled; and
 - v) has an engine displacement equal to or less than 1,000 cubic centimetres.

“Property Owner” shall mean a person or legal entity (like a corporation) whose name is on the legal title, giving them the rights to possess, use, rent, sell, or transfer a specific asset, whether tangible (like land/houses) and includes person(s) appointed or authorized by a Property Owner to act on the Property Owner’s behalf.

“Sidewalk” shall mean the portion of a highway between the curb line or edge of a roadway and the adjacent property line that is designated and intended for the use of pedestrians.

3. General Provisions

- 3.1 The operation of off-road vehicles shall be permitted upon the highways under the jurisdiction of the Town of Hanover and in accordance with Ontario Regulation 316/03 of the *Highway Traffic Act*,

as amended, the *Off-road Vehicles Act*, as amended, and in accordance with the provisions of this by-law.

- 3.2 No person shall operate an off-road motorcycle or an extreme terrain vehicle on any highway within the Town of Hanover.
- 3.3 No person shall operate an off-road vehicle at a rate of speed greater than that identified under the *Highway Traffic Act* and Ontario Regulation 316/03 or any superseding legislation.
- 3.4 There shall be a curfew in effect seven (7) days a week from one half (1/2) hour before sunset to one half (1/2) hour after sunrise. If the operator of an off-road vehicle is actively participating in hunting, farming or snow clearing activities, the hours of operation do not apply.
- 3.5 No person shall operate an off-road vehicle over or upon:
 - a) any Community Centre grounds,
 - b) any park, sports field, playground, walking trail,
 - c) hospital property, or
 - d) any cemetery that is under the jurisdiction of the Town of Hanover.
- 3.6 No person shall operate an off-road vehicle within 100 metres of the main entrance of any church or funeral home.
- 3.7 No person shall operate an off-road vehicle within 100 metres of the main entrance of a school, during the hours of 8:00 a.m. to 4:30 p.m. during the school year.
- 3.8 No person shall operate an off-road vehicle on any sidewalk in the Town of Hanover other than for the purpose of crossing a sidewalk when travelling from private property to a highway.
- 3.9 No person shall operate an off-road vehicle on a boulevard in the Town of Hanover other than for the purpose of crossing a boulevard when travelling from private property to a highway.
- 3.10 No person shall operate an off-road vehicle on any highway in the Town of Hanover from November 30 to March 31. Hunters, farmers and snow clearing operators are exempt from this provision.
- 3.11 No person shall operate an off-road vehicle on private property within the Town of Hanover without permission of the property owner.
- 3.12 A person may operate an ORV on all highways set out in Schedule A attached hereto in accordance with the Highway Traffic Act and Ontario Regulation 316/03.
- 3.13 No person shall drive an ORV on any part of a highway that is designated as a construction zone under section 128(8) of the Highway Traffic Act or any other part of a highway where construction work or highway maintenance is being carried out.
- 3.14 No person shall operate an off-road vehicle in such a way as to disrupt or

destroy the natural environment, create a nuisance by method of frequency of operation on any municipal property or upon any highway within the municipality.
- 3.15 This by-law in no way provides permission for ATV/ORV trails to cross privately held property. It will be the responsibility of the user/club to obtain written permission for the use of private property.

4. Exemptions

- 4.1 This by-law shall not apply to off-road vehicles operated for emergency purposes by the Town of Hanover employees or agents, Hanover Fire Department, Hanover Police or Grey County Paramedic Services.

5. Penalty Provisions

- 5.1 Where applicable, the provisions of this by-law shall be enforced by a Police Officer, a Municipal Law Enforcement Officer, or other such persons appointed by the municipality.
- 5.2 No person shall obstruct, hinder, or otherwise interfere with a Police Officer, Municipal Law Enforcement Officer, or other duly appointed individual in the lawful execution of their duties and responsibilities under the provisions of this by-law.
- 5.3 Every operator of an ORV shall stop when directed to do so by a Police or Municipal Law Enforcement Officer. Failure to stop when directed shall constitute the offence of 'obstruction'.
- 5.4 Every operator of an Off-Road Vehicle (ORV) shall comply with all applicable provincial requirements regarding licensing, registration, and insurance, as set out under the *Highway Traffic Act*, Ontario Regulation 316/03, and any other relevant legislation.
- 5.5 Every person who contravenes any provision of this by-law is guilty of an offence and liable upon conviction to a penalty not exceeding \$5,000, exclusive of costs and the provisions of the *Provincial Offences Act*, R.S.O. 1190, c. P.33 as amended, shall apply to said fine.
- 5.6 Every person who contravenes any section of this by-law is guilty of an offence and upon conviction is liable to a fine as provided for in the *Provincial Offences Act*, R.S.O. 1990, c. P.33, as amended.

6. Schedules

- 6.1 Schedule "XX" (Short Form Wording and Set Fines) attached hereto does not form part of this by-law.

7. Conflict

- 7.1 In the event the provisions of this by-law are inconsistent with the provisions of Provincial legislation such as the *Municipal Act*, the *Highway Traffic Act* or any other Act and their Regulations thereunder, the provisions of Provincial legislation or Regulations thereunder shall prevail.

8. Severability

- 8.1 Each of the foregoing provisions of this by-law is severable and if any provisions of this by-law should be declared invalid by any court, it is the intention and desire of this council that each and every one of the then remaining provisions shall remain in full force and effect.

9. Effective Date

This By-law shall come into force and takes effect on the date of its final passing.

READ a FIRST, SECOND and THIRD TIME and FINALLY PASSED this 12th day of January, 2026.



Susan Paterson, Mayor



Vicki McDonald, Clerk

Schedule "A"
Highways under the Jurisdiction of the
Town of Hanover permitted for use by Off-Road Vehicles (ORV)

ITEM	ROAD SECTION	FROM (Southern/Western Limit)	TO (Northern/Eastern Limit)
1	7 th Avenue	Concession 2 Sideroad	2 nd Street
2	Grey Road 10	South-East Town Boundary	2 nd Street
3	2 nd Street	7 th Avenue	14 th Avenue
4	14 th Avenue	South-East Intersection	2 nd Street
5	16 th Avenue	South-east intersection	1 st Street
6	1 st Street	14 th Avenue	18 th Avenue
7	24 th Avenue (Grey Road 28)	South-East Town Boundary	North-West Town Boundary